

## **Johns v. Commonwealth**

*Johns v. Commonwealth*, 53 Va. App. 742, 675 S.E.2d 211 (2009)

### **PROCEDURAL HISTORY:**

Michael Romulus Johns was convicted of statutory burglary and grand larceny by a Virginia trial court. He appealed his burglary conviction, arguing that the building he entered was not a "dwelling house" under Virginia law. The Virginia Court of Appeals reviewed the case.

### **ISSUE:**

Does the house Johns entered constituted a "dwelling house" under Virginia's statutory burglary law.

### **FACTS:**

John Pouloutides owned a two-story house at 39 Prospect Parkway in Portsmouth, Virginia, which was under renovation, unfurnished, and unoccupied, with no electricity or water. He had never lived in the house and intended to sell it once the renovations were complete. A neighbor reported suspicious activity, leading to the discovery of a broken window and missing tools. Later, Johns sold tools matching those stolen from the house but claimed he had found them in a trash can.

### **RULE OF LAW:**

Under Virginia law, a "dwelling house" for statutory burglary must be used for habitation. A structure not currently used as a residence, even if intended for future residential use, does not qualify.

### **REASONING:**

The court reasoned that the house was under renovation and not being used for habitation at the time of the alleged burglary. It was vacant, lacked essential utilities, and had no furniture. Since Virginia law requires a dwelling to be used for habitation either permanently or periodically the house in question did not meet that definition. The court relied on precedent, particularly *Giles v. Commonwealth*, to support its ruling.

### **HOLDING:**

The house was not a "dwelling house" under Virginia's burglary statute, and the evidence was insufficient to support Johns's burglary conviction.

**ORDER/DISPOSITION:**

The Court of Appeals reversed and dismissed the statutory burglary conviction. The grand larceny conviction was not addressed and remained intact.